

STATEMENT ON EXPERIENCE

Issued by: Wilbur William Matthee
Date: 13 April 2026
Subject: A Statement on My Experience with the Court Administration and the Filing of My Statement of Claim

1. WHO I AM

I am a registered specialist nurse. I hold a Postgraduate Diploma in Health Services Management (NQF Level 8, SAQA ID 118316) awarded with a 90% Distinction in Professional Development from the Cape Peninsula University of Technology. I am a former Case Manager within the GEMS Active Disease Risk Management Unit at Medscheme Holdings.

In October and December 2025, I made protected disclosures regarding a Priority 1 systemic clinical risk affecting 1.9 million GEMS beneficiaries. For that, I was retaliated against. I was subjected to an unlawful salary deduction of 40.47% of my monthly income. I was discriminated against on the grounds of my gender identity and my disability (PTSD). I was constructively dismissed. I am now homeless and destitute.

On 9 April 2026, I filed a Statement of Claim in the Labour Court of South Africa, Cape Town, setting out these causes of action in 18 pages with 28 supporting annexures.

This statement is about what happened next.

2. WHAT I FILED

My Statement of Claim is not a collection of allegations. It is a forensic document. Every fact is supported by an annexure. Those annexures come from the Respondents' own systems: their emails, their payslips, their policies, their Teams messages, their recorded meetings, and their own sworn opposing affidavit filed at the CCMA on 10 December 2025.

The Respondents have not disputed the authenticity of any of these documents. They cannot. They are their own words.

The Statement of Claim is signed, dated, and verified. It was emailed to the Labour Court Registrar at 09:58 on 9 April 2026 – before the expiry of my 90-day statutory deadline.

3. WHAT HAPPENED WHEN I TRIED TO FILE

I did not choose to file by email because it was convenient. I filed by email because the Court's online portal had rejected my initiating documents on 8 April 2026 (CRM Reference: 0002589) and I was unable to resolve the technical failure.

I am homeless. I do not have reliable internet access. I do not have the means to attend court in person. I asked the Registrar for assistance.

What followed was not assistance.

Date	What Happened
8 April 2026	My initiating document was rejected by the Court Online portal. I was told to “sign and re-upload.” My document was already signed.
9 April 2026 (09:54)	The Registrar confirmed in writing: “I have been informed that your matter was approved and a case number was issued.”
9 April 2026 (09:58)	I emailed my signed Statement of Claim to the Registrar to meet the statutory deadline.
10 April 2026 (08:29)	The Office of the Chief Justice informed me that a case number had been issued – but it was for a separate BCEA claim filed on 2 April 2026, not for the PDA / Constructive Dismissal claim I filed on 9 April.
10 April 2026 (09:32)	The Registrar sent me stamped court documents belonging to another litigant – Armstrong v City of Cape Town – as purported proof of my own filing.
10 April 2026 (17:01)	I was told that my Statement of Claim was unsigned. I attached a screenshot of the signature page. The signature is clear, dated, and legally valid under Section 13 of the Electronic Communications and Transactions Act.
10 April 2026 (17:07)	I was accused of “threatening court personnel.” I have made no threats. I have asked for assistance, documented refusals, and sought accountability.

At no point did any court official engage with the substance of my Statement of Claim. At no point did any court official ask about the GEMS patient safety risk, the unlawful deduction, the discrimination, the recorded retaliation, or the opposing affidavit that called my diagnosed PTSD a “cynical excuse.”

Instead, I was met with silence, technical rejections, misrepresentations, and – finally – an accusation of threatening behaviour for the crime of asking for help while homeless.

4. THE PATTERN I EXPERIENCED

I am not a lawyer. I am a nurse. But I have documented every interaction. The pattern is clear:

Stage	What Happened
Silence	My request for the audio recording of my High Court hearing (Case 2026-066952) was ignored by the Acting Chief Registrar for 15 days.
Technical deflection	My signed Statement of Claim was rejected as “unsigned.”
Misrepresentation	A case number from 2 April was presented as proof of my 9 April filing.
Data breach	I was sent another litigant’s confidential court documents – a violation of the Protection of Personal Information Act.
Character attack	I was accused of threatening court personnel.

This is not isolated incompetence. This is a system that does not know what to do with a destitute, self-represented whistleblower – and so does nothing, except defend itself.

5. WHAT I AM ASKING FOR

I am not asking for special treatment. I am asking for the treatment the law requires.

Request	Legal Basis
That my Statement of Claim be accepted as filed on 9 April 2026 at 09:58.	<i>Biowatch Trust v Registrar, Genetic Resources (2009) – self-represented constitutional litigants are entitled to procedural latitude.</i>
That the audio recording of my High Court hearing (25 March 2026, Urgent Court 4, 14:15) be provided to me at State expense.	<i>Section 34 of the Constitution – access to courts includes access to evidence.</i>
That the Labour Court assign a case number to my PDA / Constructive Dismissal claim and confirm my 9 April filing date.	<i>Section 191(11) of the Labour Relations Act – my referral was timeous.</i>
That the Office of the Chief Justice investigate the disclosure of third-party confidential documents (Armstrong v City of Cape Town) to me.	<i>Section 8 of the Protection of Personal Information Act – unauthorised disclosure of another litigant's records is a breach.</i>

6. A WORD ABOUT THE PDA AMENDMENT BILL

On 8 April 2026, the Minister of Justice and Constitutional Development, Mmamoloko Kubayi, published the Protected Disclosures Amendment Bill, 2026, for public comment. The Minister stated that whistleblowers in South Africa face “weak protections” and “limited support.”

My case is proof of that statement.

The Bill expands the definition of occupational detriment, shifts the evidential burden to the employer, and creates criminal penalties for retaliation. It also provides for legal assistance to indigent whistleblowers.

I am not a hypothetical. I am the person the Bill is written for. I have made a protected disclosure about a clinical risk to 1.9 million GEMS beneficiaries. I have been retaliated against. I am homeless. I am destitute. And the court system – the very institution meant to protect me – has become the latest instrument of that retaliation.

I have submitted a public comment on the Bill, using my own case as evidence. I urge Parliament to pass the Bill without delay – and to ensure that it is enforced.

7. A FINAL WORD

I am a specialist nurse. I spent 16 years protecting the vulnerable – during COVID, in trauma units, in mental health crisis intervention. When I saw a clinical risk to 1.9 million GEMS members, I spoke up. For that, I have lost my job, my home, my professional registration, and my dignity.

I went to court for justice. Instead, I was ignored, misled, sent another person's confidential documents, told my signature was not real, and accused of threatening the very people who refused to help me.

I do not tell this story for sympathy. I tell it because it is true. And because if I do not tell it, no one will.

The evidence is filed. The documents are public. The record speaks for itself.

I remain ready to assist the Court, the Parliament, the SAHRC, and any oversight body that wishes to examine this file.

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10 April 2026

— End of Statement —